

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO S.B. 1328
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 25-103, Arizona Revised Statutes, is amended to
3 read:

4 Purposes of title; application of title

5 A. It is declared that the public policy of this state and the
6 general purposes of this title are:

7 1. To promote strong families. ~~2.~~

8 2. To promote strong family values.

9 3. TO PROTECT AND PROMOTE PARENTS' RIGHTS AS PRESCRIBED IN SECTION
10 1-601.

11 4. TO PROTECT AND PROMOTE THE PARENTS' BILL OF RIGHTS AS PRESCRIBED
12 IN SECTION 1-602.

13 B. It also is the declared public policy of this state and the
14 general purpose of this title that, absent evidence to the contrary, it is
15 in a child's best interest:

16 1. To have substantial, frequent, meaningful and continuing
17 parenting time with both parents.

18 2. To have both parents participate in decision-making about the
19 child.

20 [3. THAT A CHILD HAS A RIGHT TO EQUAL ACCESS TO BOTH CO-PARENTS.]

21 C. A court shall apply the provisions of this title in a manner
22 that is consistent with this section.

23 <<Sec. 2. Legislative intent

24 [The State of Arizona recognizes that:

25 1. Parental rights pursuant to section 1-601, Arizona Revised
26 Statutes, and children's constitutional rights to family integrity under
27 the Fourteenth Amendment's Due Process Clause protect the family unit from
28 unwarranted state interference.

1 2. The right to unwarranted state interference is reciprocal to
2 parents' fundamental rights to the care, custody and control of their
3 children, as established in landmark Supreme Court cases such as Meyer v.
4 Nebraska 262 (U.S. 390, 43 S. Ct. 625, 1923), Pierce v. Society of the
5 Sisters of the Holy Names of Jesus and Mary (268 U.S. 390, 43 S. Ct. 625,
6 1925), Stanley v. Illinois (405 U.S. 510, 92 S. Ct. 1208, 1972), Santosky
7 v. Kramer (455 U.S. 745, 102 S. Ct. 1388, 1982) and Troxel v. Granville
8 (520 U.S. 57, 120 S. Ct. 2054, 2000).
9 3. Federal circuit courts have affirmed rights for children in
10 dependency proceedings, including in Duchesne v. Sugarman (566 F.2nd 817,
11 1977), Wallis v. Spencer (202 F.3d 1126, 2000) and Jordan v. Jackson (876
12 A.2d 443, 2005).
13 4. While existing jurisprudence asserts these rights and focuses on
14 preventing unjust separation from the family as a whole and does not
15 extend to a child's civil or constitutional right to equal access, it is
16 the public policy of the State of Arizona that it does.
17 5. It is the policy of the State of Arizona that the "best interest
18 of the child" standard prioritizes the child's welfare over any
19 presumption of equality to either parent and to achieve that standard,
20 family courts must recognize presumptions favoring shared parenting,
21 unless evidence shows otherwise.]>>

22 Enroll and engross to conform
23 Amend title to conform

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